

Before the  
FEDERAL MARITIME COMMISSION  
Washington, D.C. 20573  
Docket No. 21-05  
MCS INDUSTRIES, INC. v.  
MSC MEDITERRANEAN SHIPPING COMPANY SA

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**DECLARATION OF MATTHEW J. REYNOLDS  
IN SUPPORT OF COMPLAINANT'S FEE PETITION**

I, Matthew J. Reynolds, hereby declare as follows:

1. I am a partner at Huth Reynolds LLP ("HR LLP"), which I co-founded with Karl Huth in 2018.
2. I am a member in good standing of the Bars of New York, Virginia, and the District of Columbia and have filed an appearance in this proceeding.
3. I submit this Declaration in support of Complainant MCS Industries, Inc.'s ("Complainant" or "MCS Industries") Fee Application filed herewith.
4. HR LLP has continuously represented Complainant since before the inception of the above-captioned action.
5. Exhibit 1 hereto is a true and correct copy of a September 16–18, 2025 email exchange between the Office of the Secretary of the Federal Maritime Commission and me.
6. HR LLP maintained separate time records for its work in connection with this action.
7. Exhibit 2 hereto contains true and correct copies of HR LLP's time entries for its work in connection with this action, from which certain time entries relating, *inter alia*, principally

to Complainant's litigation against, and subsequent confidential settlement with, the other (former) respondent in this action have been omitted, and in which certain time entry narratives containing attorney-client privileged, attorney work product, and/or compromise/settlement-related content have been partially redacted.

8. Exhibit 2 hereto also contains true and correct entries for the out-of-pocket costs and expenses that HR LLP incurred in connection with this action.

9. I am a 2005 graduate of the Columbia University School of Law.

10. HR LLP partner and founder Karl Huth is a 2004 graduate of the Columbia University School of Law.

11. Former HR LLP partner William Falsey is a 2005 graduate of Yale Law School who joined HR LLP as senior counsel in 2022.

12. Former HR LLP senior counsel Sara Wilcox is a 2005 graduate of the Columbia University School of Law who joined HR LLP in 2020.

13. HR LLP counsel James Fribley is a 2011 graduate of the NYU School of Law who began working with HR LLP on an of counsel basis in 2019 and joined HR LLP as an associate in 2021.

14. HR LLP counsel Joshua Luke Rushing is a 2018 graduate of the Columbia University School of Law who joined HR LLP as an associate in 2022.

15. HR LLP counsel Jack Lee Hill is a 2018 graduate of the Columbia University School of Law who joined HR LLP as an associate in 2024.

16. HR LLP associate Jie Shi is a 2022 graduate of Vanderbilt Law School who joined HR LLP in 2024.

17. HR LLP of counsel Edward Vasquez is a 2002 graduate of Seton Hall Law School who began working with HR LLP on an of counsel basis in 2020.

18. HR LLP analyst Samuel Lowry is a 2023 graduate of Harvard University who began working with HR LLP on an independent contractor basis in 2023 and joined HR LLP as an analyst later in 2023.

19. Exhibit 3 hereto contains invoices from the translation firm, court reporting agency, and expert witness underlying those corresponding costs and expenses in Exhibit 2.

20. HR LLP has also continuously represented MCS Industries in the Society of Maritime Arbitrators arbitration (the “Arbitration”) that Respondent MSC Mediterranean Shipping Company SA (“Respondent” or “Mediterranean”) initiated against Complainant on February 14, 2022, which currently is pending the issuance of a final award.

21. Mediterranean’s Closing Brief submitted in the Arbitration seeks an award of liquidated damages in the total amount of \$184,250, of which \$133,750 relate to the parties’ service contracts for the 2020–2021 and 2021–2022 shipping years (i.e., the same service contracts and shipping years at issue in this action).

22. The Declaration of George K. Kontakis Setting Forth Claimant MSC Mediterranean Shipping Company S.A.’s Claim for Legal Fees and Costs submitted in the Arbitration claims total legal fees associated with the Arbitration of approximately \$1,995,271.20 plus approximately \$59,563.33 in costs, expenses, and disbursements through the pendency of the Arbitration, for which Mediterranean is seeking an award totaling approximately \$2,054,834.53, excluding the arbitrators’ fees.

23. MCS Industries’ Post-Hearing Brief submitted in the Arbitration seeks an award of compensatory damages on its breach of contract counterclaims in the total amount of

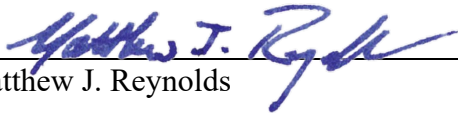
\$1,232,411.71, of which \$1,152,677 relate to the parties' service contracts for the 2020–2021 and 2021–2022 shipping years (i.e., the same service contracts and shipping years at issue in this action).

24. MCS Industries' Amended Fee Application submitted in the Arbitration claims \$733,787.50 in legal fees associated with the Arbitration plus \$87,314.84 in costs and expenses incurred in connection with the Arbitration, for which MCS Industries is seeking an award totaling \$821,102.34, excluding the arbitrators' fees.

25. None of MCS Industries' time entries or costs and expenses incurred in connection with the Arbitration are being claimed in MCS Industries' Fee Petition in this action, and vice-versa.

To the best of my knowledge, information, and belief, I declare under penalty of perjury that the foregoing is true and correct.

Dated: September 19, 2025

  
Matthew J. Reynolds